

DISTRICT-JASHORE

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. of 2024

In the matter of:

An application under section 498 of the Code of Criminal Procedure.

-And-

In the matter of:

Md. Badsha Miah

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Emran Khan, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 14th January 2024

This is an application under Section 498 of the Code of Criminal Procedure for bail.

Mr. Md. Emran Khan, learned Advocate for the petitioner prays for his bail on the ground of long custody since 30.05.2020.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the state raises objection against granting of bail to the petitioner.

It turns out from the record that in this case under Sections 302/34 of the Penal Code the petitioner has made a confession under Section 164 of the Code of Criminal Procedure.

On consideration of above materials on record we hold that the ends of justice will be met if instead of granting bail to the accused-petitioner at this point of time a direction is issued upon the trial Court for expeditious disposal of the case or in default consider the petition for bail.

Accordingly, we are directing the learned Additional Sessions Judge, 5th Court, Jashore to conclude the trial of the case within 6(six) months from the date of receipt of this order or in default consider the petition for bail of the accused-petitioner, if any, sympathetically and in accordance with law.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

Md. Masudur Rahman
Bench Officer